

Court No. - 3

Case :- WRIT - C No. - 10825 of 2022

Petitioner :- Navi Hasan

Respondent :- Up Power Corporation And Another

Counsel for Petitioner :- Surya Narayan

Counsel for Respondent :- Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Surya Narayan, learned counsel for the petitioner and Sri Pranjali Mehrotra, learned counsel for the respondent no.2.

On oral request of the learned counsel for the petitioner, the word "U.P. Power Corporation Ltd. Vidyut Bhawan, Lucknow" as described in array of respondent no.1, is allowed to be deleted. Necessary correction in the array of parties be carried out during the course of the day.

This writ petition has been filed praying for following relief:-

(i) issue a writ, order or direction in nature of certiorari quashing the demand order dated 21.03.2022 passed by the Executive Engineer/ Prescribed Authority Electricity Distribution Division II, Moradabad filed as Annexure no.1 to this writ petition.

(ii) issue a Writ, order or direction in the nature of mandamus for summoning the opposite party no.2 Executive Engineer/Prescribed Authority Electricity Distribution Division II, Moradabad and punishing him for non-compliance of the order dated 22.10.2021 passed by the Division Bench of this Hon'ble Court in Writ C No.26241 of 2021 as well as order dated 18.02.2022 passed in Criminal Misc. Application u/s 482 Cr.P.C. No.25367 of 2021 and relating filed of the petitioner may kindly be summoned for considering real controversy.

Petitioner has earlier filed Writ-C No. 26241 of 2021(Navi Hasan Versus U.P. Power Corporation Ltd. and 2 others) which was disposed of by this Court vide order dated 22.10.2021. The order dated 22.10.2021 is reproduced below:-

"Heard learned counsel for the parties.

Challenge has been raised to the demand of Rs. 5,44,570/- made against the petitioner against the assessment made pursuant to an inspection carried out at the premises of the petitioner and his brother Imran on 06.09.2019.

Submission of learned counsel for the petitioner is that the instant petition is based on the identical facts as in the case of (Imran Husain vs. U.P. Power Corporation Ltd. and 3 others). This Court vide its order dated 19.01.2021 set aside the demand raised against Imran Husain and the matter is pending before the respondent no. 6. Second, it has been submitted that the entire proceedings were conducted on an ex-parte basis, contrary to law. Neither during the course of inspection, the petitioner was present nor any document was handed over to the petitioner at the relevant time. In any case, no item of machinery etc. was seized. Third, it has been submitted that the assessment made is wholly contrary to law, inasmuch as, the respondent has made that assessment in a mechanical way. Fourth, it has been submitted that neither the assessment order nor the demand note was served on the petitioner at the relevant time and that he has gained knowledge of the same only upon the recovery citation, dated 07.08.2021 being served upon him. Lastly, he pressed financial hardship on account of the circumstances prevailing from the spread of pandemic COVID-19.

The case of the petitioner is found to be dis-similar to that of Imran Husain, inasmuch the latter had first approached this Court in Writ C No. 20470 of 2020, wherein, by order dated 03.12.2020, the Court had quashed the recovery citation and allowed the petitioner to file an objection to the proposed assessment. Since, on the second occasion also an ex-parte order came to be passed, it was set aside by this Court in Writ C No. 833 of 2021, vide order dated 19.01.2021.

Though the petitioner is the brother of Imran Husain and though the present petition arises from the common inspection made against the petitioner and the said Imran Husain, the petitioner never approached this Court with any grievance on any earlier date.

In absence of any earlier direction issued by this Court to decide the petitioner's objection and, on account of delay of two years from the inspection, keeping in mind the relationship between the petitioner and the Imran Husain, we are not inclined to accept the plea, being now set up by the petitioner, seeking similarity with Imran Husain.

As to the merit objections to the manner in which the inspection may have been conducted or assessment made, we feel that the same may adequately be addressed before the statutory authorities as at present, learned counsel for the Distribution Corporation would contend that the due procedure had been followed.

As to the non service of inspection note and the ex-parte nature of the assessment order again, we find that the challenge raised is wholly belated and therefore not acceptable in writ jurisdiction. However, the merits of the objection may remain open to the petitioner to contest before the statutory authorities.

At the same time, in the interest of justice, we feel that some opportunity may be granted to the petitioner to contest the demand being made as the petitioner discloses to be a carpenter with little means.

Accordingly, the writ petition is disposed of with the following directions:

(i) subject to the petitioner depositing a sum of Rs. 25,000/- within a period of one month from today not later than 30 November 2021, the respondent no. 2 shall make available to the petitioner all adverse material that is being relied in support of the communication dated 07.08.2021 (annexed as Annexure No. 1 to the petition);

(ii) upon being thus confronted with the adverse material, the petitioner shall have a right to file a detailed objection within a further period of two weeks therefrom annexing therewith all material as the petitioner may seek to rely on;

(iii) upon receipt of such objection, the said respondent no. 2 shall fix a date for hearing in the matter within a period of two weeks therefrom and pass appropriate and reasoned order, strictly in accordance with law, after hearing the parties within a period of one month therefrom.

For a period of three months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

All further recovery shall abide by the decision to be made by the respondent no. 2.

Failing such objection being filed by the petitioner, for any reasons, the only remedy that may remain open to him may be to contest the matter in appeal"

Thereafter, the respondent no.2 has passed the impugned order dated 21.03.2022 in compliance of the aforementioned order of this Court.

We have perused the impugned order and we find that it is pre printed in which merely the name and address of the petitioner, date of notice and amount have been filled up. The conclusion itself are pre printed. Direction of this Court as given in the aforementioned order has been completely ignored consciously. This, prima facie shows gross misconduct on the part of the respondent no.2.

In view of aforesaid, we direct the respondent nos. 1 and 2 to file counter affidavit by means of their personal affidavit within a week, failing which the respondent no.2 shall remain personally present before this Court.

Put up as a fresh case before the appropriate bench on 19.07.2022 at 10:00 A.M.

Order Date :- 12.7.2022

T.S.

Court No. - 3

A.F.R.

Case :- WRIT - C No. - 10825 of 2022

Petitioner :- Navi Hasan

Respondent :- Up Power Corporation And Another

Counsel for Petitioner :- Surya Narayan

Counsel for Respondent :- Rajesh Yadav,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Chandra Kumar Rai,J.

1. Heard Sri Surya Narayan, learned counsel for the petitioner and Sri Pranjal Mehrotra, learned counsel for the respondents.

2. This writ petition has been filed praying for following reliefs:-

"I) Issue a writ, order or direction in the nature of certiorari quashing the demand order dated 21.03.2022 passed by the Executive Engineer/Prescribed Authority Electricity Distribution Division II, Moradabad filed as Annexure No.1 to this writ petition.

II) Issue a writ, order or direction in the nature of mandamus for summing the opposite party no.2 Executive Engineer/Prescribed Authority Electricity Distribution Division II, Moradabad and punishing him for non compliance of the order dated 22.10.2021 passed by the Division Bench of this Hon'ble Court in Writ -C No. 26241 of 2021 as well as order dated order dated 18.02.2022 passed in Criminal Misc. Application No. 482 Cr. P.C. No. 25367 of 2021 and relating file of the petitioner may kindly be summoned for considering real controversy"

3. The petitioner has earlier filed Writ-C No. 26241 of 2021 (Navi Hasan Versus U.P. Power Corporation Limited and 2 others), which was disposed of by this Court vide order dated 22.10.2021, the operative portion of aforesaid order is reproduced below:-

*".....Accordingly, the writ petition is **disposed of** with the following directions:*

(i) subject to the petitioner depositing a sum of Rs. 25,000/- within a period of one month from today not later than 30 November 2021, the respondent no. 2 shall make available to the petitioner all adverse material that is being relied in support of the communication dated 07.08.2021 (annexed as Annexure No. 1 to the petition);

(ii) upon being thus confronted with the adverse material, the petitioner shall have a right to file a detailed objection within a further period of two weeks therefrom annexing therewith all material as the petitioner may seek to rely on;

(iii) upon receipt of such objection, the said respondent no. 2 shall fix a date for hearing in the matter within a period of two weeks therefrom and pass appropriate and reasoned order, strictly in accordance with law, after hearing the parties within a period of one month therefrom.

For a period of three months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

All further recovery shall abide by the decision to be made by the respondent no. 2.

Failing such objection being filed by the petitioner, for any reasons, the only remedy that may remain open to him may be to contest the matter in appeal....."

4. Despite the aforesaid order, the respondent no.2 has passed the impugned order dated 21.03.2022 in complete disregard to the directions issued by this Court vide aforequoted order dated 22.10.2021 in Writ-C No. 26241 of 202.

5. On 12.07.2022, this Court has passed a detail order and observed as under:-

*“.....We have perused **the impugned order and we find that it is pre printed in which merely the name and address of the petitioner, date of notice and amount have been filled up. The conclusion itself are pre printed.** Direction of this Court as given in the aforesaid order has been completely ignored consciously. This, prima facie shows gross misconduct on the part of the respondent no.2.*

In view of aforesaid, we direct the respondent nos. 1 and 2 to file counter affidavit by means of their personal affidavit within a week, failing which the respondent no.2 shall remain personally present before this Court.....”

6. Today, personal affidavit of the respondent no.1 and counter affidavit by means of personal affidavit of respondent no.2 have been filed by Sri Pranjal Mehrotra, Advocate. In paragraph nos. 4,5, and 6 of the personal affidavit/counter affidavit, the respondent no. 2 has stated as under:-

“4. That it is respectfully submitted that the respondent no.2 has issued the office Memorandum No. 2951 dated 13.07.2022 cancelling the earlier order No. 10503 dated 21.03.2022 (Annexure No.1 to the writ petition). Copy of the aforesaid office memorandum No. 2951 dated 13.07.2022 has also been sent to the petitioner.

5. That it is further respectfully submitted that in compliance of the above quoted directions passed by this Hon’ble Court vide judgment and order dated 22.10.2021, the respondent no.2 has issued letter No. 2983 dated 14.07.2022 to the petitioner, inter-alia, informing the petitioner about the aforesaid office memorandum No. 2951 dated 13.07.2022 and further providing him copy of the checking report and further giving him two weeks time to reply alongwith evidence.

6. That the respondent no.2 tenders the unconditional and unqualified apology for the omission on his part in issuing the earlier order no.10503 dated 21.03.2022 and for the inconvenience caused to this Hon’ble Court and begs for acceptance of the same and to be pardoned. The respondent no.2 being a responsible Government Officer, has the highest regard for the majesty and order passed by this Hon’ble Court of any court of law. The respondent no.2 has no intention to flout the orders passed by this Hon’ble Court in any manner whatsoever”.

7. **The impugned order dated 21.03.2022 passed by the respondent no.2 is a pre-printed order in which the respondent no.2 has merely filled by pen the name of the petitioner, checking report number and date, notice number and date and the amount of Rs. 5,19,525.00. At the top of the order, the respondent no.2 has mentioned by pen as under:-**

“रिट संख्या 26241/2021 मा0 उच्च न्यायालय के आदेश दिनांक 22.10.2021 के अनुपालन में उपभोक्ता के द्वारा रुपया 25,000.00 जमा करा दिये गये हैं कुल राजस्व 5,44,525-25,000=5,19,525.00”.

8. The fact as aforementioned leaves no manner of doubt that the respondent no.2 while passing the impugned order was very much aware of the order dated 22.10.2021 passed by this Court in Writ-C No. 26241 of 2021 and yet he deliberately ignored the direction and passed the impugned order arbitrary, illegally and in breach of principle of natural justice. The impugned order is pre-printed order in which merely the name and address of the petitioner, checking report number and date, notice number and date and a sum of Rs. 5,19,525/- has been filled by pen. There is absolutely no consideration of the objection filed by the petitioner. Thus, the respondent no.2 has violated the principles of natural justice and acted arbitrarily and illegally. The impugned order has been issued with pre-conceived mind. Since the impugned is in pre-printed format, therefore, it appears that the respondent no.2 is habitual of passing assessment orders in the manner as aforesaid and even has no respect to the orders passed by this Court.

Law of Natural Justice

9. In the case of Uma Nath Pandey & Ors. vs State of U.P.& Anr. [(2009) 12 SCC page 40 para 3], the Hon'ble Supreme Court noted the concept of natural justice and observed that it is another name of common sense justice. The adherence to principles of natural justice as recognized by all civilized States is of supreme importance when a quasi-judicial body embarks on determining disputes between the parties, or any administrative action involving civil consequences is in issue.

10. **The first** and foremost principle of natural justice is commonly known as **audi alteram partem rule**. It says that no one should be condemned unheard. Notice is the first limb of this principle. It must be precise and unambiguous. It should appraise the party determinatively the case he has to meet. Time given for the purpose should be adequate so as to enable him to make his representation. **In the absence of a notice of the kind and reasonable opportunity, the order passed becomes wholly vitiated.** Thus, it is but essential that a party should be put on notice of the case before any adverse order is passed against him. It is an approved rule of fair play.

11. The principles of natural justice are those rules which have been laid down by the Courts as being the minimum protection of the rights of the individual against the arbitrary procedure that may be adopted by a judicial, quasi-judicial and administrative authority while making an order affecting those rights. These rules are intended to prevent such authority from doing injustice. Even an administrative order which involves civil consequences must be consistent with the rules of natural justice.

12. Expression 'civil consequences' encompasses infraction of not merely property or personal rights but of civil liberties, material deprivations, and non-pecuniary damages. In its wide umbrella comes everything that affects a citizen in his civil life.

13. **Natural justice** has been variously defined by different Judges, for instance a duty to act fairly, the substantial requirements of justice, the natural sense of what is right and wrong, fundamental justice and fair-play in action. Over the years by a process of judicial interpretation two rules have been evolved as representing the principles of natural justice in judicial process, including therein quasi-judicial and administrative process. They constitute the basic elements of a fair hearing, having their roots in the innate sense of man for fair-play and justice which is not the preserve of any particular race or country but is shared in common by all men. The **first rule** is 'nemo judex in causa sua' or 'nemo debet esse judex in propria causa sua' that is no man shall be a judge in his own cause. The **second rule** is 'audi alteram partem', that is, 'hear the other side'. A corollary has been deduced from the above two rules and particularly the audi alteram partem rule i.e. 'he who shall decide anything without the other side having been heard, although he may have said what is right, will not have been what is right' or in other words, as it is now expressed, 'justice should not only be done but should manifestly be seen to be done'. Natural justice is the essence of fair adjudication, deeply rooted in tradition and conscience, to be ranked as fundamental. The purpose of following the principles of natural justice is the prevention of miscarriage of justice.

14. Whenever an order is struck down as invalid being in violation of principles of natural justice, there is no final decision of the case and fresh proceedings are left upon. All that is done is to vacate the order assailed by virtue of its inherent defect, but the proceedings are not terminated.

15. In his personal affidavit/counter affidavit, the respondent no.2 has stated that he has withdrawn the impugned order dated 21.03.2022 by order dated 13.07.2022 without disclosing in his counter affidavit, the power conferred upon him either under the Electricity Act or under U.P. Electricity Supply Code, 2005 to recall/review the order. The impugned order has been withdrawn by the respondent no.2 during pendency of the writ petition and without leave of the court. This itself prima facie shows misconduct on the part of the respondent no.2.

16. For all the reasons aforestated, the impugned order dated 21.03.2022 is ***quashed***. The respondent no.2 is directed to confront the petitioner with all adverse material within ten days from today. Thereafter, the petitioner may submit his objection before the respondent no.2 within next three weeks. Thereafter, the respondent no.2 shall pass a reasoned and speaking assessment order in accordance with law within next four weeks after affording reasonable opportunity of hearing to the petitioner.

17. The writ petition is ***allowed with cost of Rs. 1,00,000/-***, which the respondent no.2 shall pay to the petitioner by account payee cheque or bank draft.

Order Date :- 19.7.2022

T.S.